

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 169 By: Hall, Haste, and Goodwin of
the Senate
3
4 and
5 Kane of the House
6
7 An Act relating to state government; amending 74 O.S.
2021, Section 840-2.18, as last amended by Section 1,
8 Chapter 18, 1st Extraordinary Session, O.S.L. 2023
(74 O.S. Supp. 2025, Section 840-2.18), which relates
9 to longevity pay; increasing longevity amounts for
certain state employees; updating statutory language;
10 updating statutory references; and providing an
effective date.
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12
13 AUTHORS: Add the following House Coauthors: Fugate, Timmons,
Provenzano, Alonso-Sandoval, Deck, Menz, Stark, and
14 Pogemiller
15 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
and insert:
16
17 "An Act relating to state government; amending 74
O.S. 2021, Section 840-2.18, as last amended by
18 Section 1, Chapter 18, 1st Extraordinary Session,
O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18),
19 which relates to longevity pay; increasing longevity
amounts for certain state employees; updating
20 statutory language; updating statutory references;
providing an effective date; and declaring an
21 emergency.
22
23
24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 74 O.S. 2021, Section 840-2.18, as
2 last amended by Section 1, Chapter 18, 1st Extraordinary Session,
3 O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18), is amended to
4 read as follows:

5 Section 840-2.18. A. A longevity pay plan is hereby adopted.
6 This plan applies to all state employees, excluding members of
7 boards and commissions, institutions under the administrative
8 authority of the Oklahoma State Regents for Higher Education,
9 employees of public school districts, and elected officials. The
10 plan shall also apply to those employees of the Oklahoma School for
11 the Blind and the Oklahoma School for the Deaf who qualify for
12 longevity pay in accordance with subsection G of Section 1419 of
13 Title 10 of the Oklahoma Statutes.

14 B. The Oklahoma Conservation Commission is hereby authorized to
15 establish a longevity pay program for employees of the conservation
16 districts employed under Section 3-3-103 of Title 27A of the
17 Oklahoma Statutes. Such longevity pay program shall be consistent
18 with the longevity pay program for state employees authorized under
19 this title and payments shall be made in a manner consistent with
20 procedures for reimbursement to conservation districts.

21 C. To be eligible for longevity pay, employees must have been
22 continuously employed in the service of the state for a minimum of
23 two (2) years in full-time status or in part-time status working
24 more than one thousand (1,000) hours a year.

1 For purposes of this section, a break in service of thirty (30)
2 calendar days or less shall not be considered an interruption of
3 continuous service; a break in service of more than thirty (30)
4 calendar days shall mark an end to continuous service. The
5 legislative session employees who have worked for two (2) years or
6 more in part-time status and are eligible for state retirement
7 benefits, but do not receive other longevity payments, shall be
8 eligible and shall be considered to have been continuously employed
9 for purposes of calculating longevity payments, notwithstanding the
10 provisions of subsection E of this section.

11 D. 1. Longevity pay for the first twenty (20) years of service
12 shall be determined pursuant to the following schedule:

13 Years of Service	Annual Longevity Payment
14 At least 2 years but	
15 less than 4 years	\$250.00 <u>\$375.00</u>
16 At least 4 years but	
17 less than 6 years	\$426.00 <u>\$639.00</u>
18 At least 6 years but	
19 less than 8 years	\$626.00 <u>\$939.99</u>
20 At least 8 years but	
21 less than 10 years	\$850.00 <u>\$1,275.00</u>
22 At least 10 years but	
23 less than 12 years	\$1,062.00 <u>\$1,593.00</u>

24

At least 12 years but

less than 14 years

~~\$1,250.00~~ \$1,875.00

At least 14 years but

less than 16 years

~~\$1,500.00~~ \$2,250.00

At least 16 years but

less than 18 years

~~\$1,688.00~~ \$2,532.00

At least 18 years but

less than 20 years

~~\$1,900.00~~ \$2,850.00

At least 20 years

~~\$2,000.00~~ \$3,000.00

2. For each additional two (2) years of service after the first twenty (20) years an additional ~~Two Hundred Dollars (\$200.00)~~ Three Hundred Dollars (\$300.00) shall be added to the amount stated above for twenty (20) years of service.

The total amount of the annual longevity payment made to an employee by any and all state agencies in any year shall not exceed the amount shown on the table corresponding to that employee's years of service with the state, ~~except as otherwise provided by Section 840-2.28 of this title.~~ Further, no employee shall receive duplicating longevity payments for the same periods of service with any and all agencies, ~~except as otherwise provided by Section 840-2.28 of this title.~~

E. To determine years of service, cumulative periods of full-time employment or part-time employment working more than one hundred fifty (150) hours per month with the state excluding service

1 as specified in subsection A of this section are applicable. Part-
2 time employment, working one hundred fifty (150) hours per month or
3 less for the state, excluding service as specified in subsection A
4 of this section, shall be counted only if:

5 1. The period of employment was continuous for at least five
6 (5) months; and

7 2. a. The person worked more than two-fifths (2/5) time.

8 Other employment shall not be counted as service for purposes of
9 longevity payments. Further, no period of employment with the
10 state, whether with one or more than one agency, shall be counted as
11 more than full-time service.

12 b. For purposes of the computation required by this
13 section, any service performed by a person during
14 which the person received compensation for duties
15 performed for the state shall be counted if payment
16 for such service was made using state fiscal
17 resources. The provisions of this ~~paragraph~~
18 subparagraph shall not apply to elected or appointed
19 justices or judges, including special judges, who
20 perform services in the trial or appellate courts.
21 The provisions of this section shall apply to persons
22 who perform services as an administrative law judge
23 within the executive department and employees of the
24 judicial branch.

1 F. Years of service under the administrative authority of the
2 Oklahoma State Regents for Higher Education or the administrative
3 authority of the Oklahoma Department of Career and Technology
4 Education of any employee who is now employed in a job
5 classification which is eligible for longevity pay shall be included
6 in years of service for purposes of determining longevity pay.

7 G. Years of service shall be certified through the current
8 employing agency by the appointing authority on a form approved by
9 the Office of Management and Enterprise Services. The form shall be
10 completed and posted as directed by the Director of the Office of
11 Management and Enterprise Services by the current employing agency
12 when the employee initially enters on duty with the agency and
13 thereafter whenever the employee's anniversary date is changed.

14 H. Eligible employees, in full-time status or in part-time
15 status working more than one hundred fifty (150) hours per month,
16 shall receive one (1) lump-sum annual payment, in the amount
17 provided on the preceding schedule, during the month following the
18 anniversary date of the employee's most recent enter-on-duty day
19 with the state. Upon implementation of the statewide information
20 systems project, the lump-sum annual payment may be paid concurrent
21 with the final payroll of the month of the employee's anniversary
22 date. Eligible part-time employees who work one hundred fifty (150)
23 hours per month or less shall receive one (1) lump-sum annual
24 payment, based on the formula in subsection L of this section,

1 during the month following the anniversary date of the employee's
2 most recent enter-on-duty day with the state. To receive longevity
3 pay an employee must be in pay status on or after his or her
4 anniversary date.

5 Eligible employees who would not otherwise receive annual
6 longevity payments because their employment includes regular periods
7 of leave without pay in excess of thirty (30) calendar days shall
8 receive one (1) lump-sum annual payment, based on the formula in
9 subsection L of this section, during:

10 1. The month of August if the employee is in pay status on July
11 1; or

12 2. During the month following the employee's first return to
13 duty that fiscal year if the employee is not in pay status on July
14 1.

15 ~~Except as otherwise provided by Section 840-2.28 of this title,~~
16 ~~employees~~ Employees terminated as a result of a reduction-in-force
17 or retiring from state employment shall receive upon ~~said~~ such
18 termination or retirement the proportionate share of any longevity
19 payment which may have accrued as of the date of termination or
20 retirement. Provided further, that, ~~that~~ the proportionate share of any
21 longevity payment which may have accrued as of the date of death of
22 an employee shall be made to the surviving spouse of the employee or
23 if there is no surviving spouse to the estate of the employee.

1 I. Periods of leave without pay taken in accordance with
2 Section 840-2.21 of this title shall be counted as service. Other
3 periods of nonpaid leave status in excess of thirty (30) calendar
4 days shall not mark a break in service; however, they shall:

5 1. Not be used in calculating total months of service for
6 longevity pay purposes; and

7 2. Extend the anniversary date for longevity pay by the total
8 period of time on nonpaid leave status except as provided in
9 subsection H of this section for employees whose conditions of
10 employment include regular periods of leave without pay.

11 J. Employees currently receiving longevity pay who work for the
12 Oklahoma Department of Career and Technology Education shall not be
13 eligible for the longevity pay plan provided for in this section.

14 K. A break in service with the state in excess of thirty (30)
15 days but which does not exceed two (2) years which was caused by a
16 reduction-in-force shall be treated as if it were a period of
17 nonpaid leave status as provided for in subsection I of this section
18 for the purpose of calculating total months of service for longevity
19 pay. This subsection shall only apply to state employees laid off
20 after June 30, 1982.

21 L. Eligible part-time employees working less than one hundred
22 fifty (150) hours per month and other eligible employees with
23 regular annual periods of leave without pay of more than thirty (30)
24 calendar days will receive a prorated share of the "Annual Longevity

1 Payment" authorized in subsection D of this section. The prorated
2 amount of payment will be based on actual hours worked in the
3 immediately preceding twelve (12) months.

4 M. An employee shall not be entitled to retroactive longevity
5 payments as a result of amendments to this section unless
6 specifically authorized by law.

7 N. The Director of the Office of Management and Enterprise
8 Services is authorized to promulgate such ~~Longevity Pay Plan Rules~~
9 longevity pay plan rules as he or she finds necessary to carry out
10 the provisions of this section.

11 O. As of July 1, 1998, years of service with a city-county
12 health department for employees who left a city-county health
13 department for employment with the Department of Environmental
14 Quality or the Oklahoma Department of Agriculture, Food, and
15 Forestry, between July 1, 1993, and July 1, 1998, and who are now
16 employed in a job classification that is eligible for longevity pay
17 pursuant to this section, shall be included in years of service for
18 purposes of determining longevity pay subsequent to July 1, 1998.

19 P. As of July 1, 2003, years of service with a local
20 conservation district shall be included in years of service for
21 purposes of determining longevity pay for local conservation
22 district employees transferred to the Oklahoma Conservation
23 Commission pursuant to the provisions of this section.

24 SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval."

Passed the House of Representatives the 13th day of April, 2026.

Presiding Officer of the House of
Representatives

Passed the Senate the day of , 2026.

Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 169

By: Hall, Haste, and Goodwin of
the Senate

3 and

4 Kane of the House

5
6
7 An Act relating to state government; amending 74 O.S.
8 2021, Section 840-2.18, as last amended by Section 1,
Chapter 18, 1st Extraordinary Session, O.S.L. 2023
9 (74 O.S. Supp. 2025, Section 840-2.18), which relates
to longevity pay; increasing longevity amounts for
10 certain state employees; updating statutory language;
updating statutory references; and providing an
11 effective date.

12
13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 4. AMENDATORY 74 O.S. 2021, Section 840-2.18, as
15 last amended by Section 1, Chapter 18, 1st Extraordinary Session,
16 O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18), is amended to
17 read as follows:

18 Section 840-2.18. A. A longevity pay plan is hereby adopted.
19 This plan applies to all state employees, excluding members of
20 boards and commissions, institutions under the administrative
21 authority of the Oklahoma State Regents for Higher Education,
22 employees of public school districts, and elected officials. The
23 plan shall also apply to those employees of the Oklahoma School for
24 the Blind and the Oklahoma School for the Deaf who qualify for

1 longevity pay in accordance with subsection G of Section 1419 of
2 Title 10 of the Oklahoma Statutes.

3 B. The Oklahoma Conservation Commission is hereby authorized to
4 establish a longevity pay program for employees of the conservation
5 districts employed under Section 3-3-103 of Title 27A of the
6 Oklahoma Statutes. Such longevity pay program shall be consistent
7 with the longevity pay program for state employees authorized under
8 this title and payments shall be made in a manner consistent with
9 procedures for reimbursement to conservation districts.

10 C. To be eligible for longevity pay, employees must have been
11 continuously employed in the service of the state for a minimum of
12 two (2) years in full-time status or in part-time status working
13 more than one thousand (1,000) hours a year.

14 For purposes of this section, a break in service of thirty (30)
15 calendar days or less shall not be considered an interruption of
16 continuous service; a break in service of more than thirty (30)
17 calendar days shall mark an end to continuous service. The
18 legislative session employees who have worked for two (2) years or
19 more in part-time status and are eligible for state retirement
20 benefits, but do not receive other longevity payments, shall be
21 eligible and shall be considered to have been continuously employed
22 for purposes of calculating longevity payments, notwithstanding the
23 provisions of subsection E of this section.

24

1 D. 1. Longevity pay for the first twenty (20) years of service
2 shall be determined pursuant to the following schedule:

3	Years of Service	Annual Longevity Payment
4	At least 2 years but	
5	less than 4 years	\$250.00 <u>\$375.00</u>
6	At least 4 years but	
7	less than 6 years	\$426.00 <u>\$639.00</u>
8	At least 6 years but	
9	less than 8 years	\$626.00 <u>\$939.99</u>
10	At least 8 years but	
11	less than 10 years	\$850.00 <u>\$1,275.00</u>
12	At least 10 years but	
13	less than 12 years	\$1,062.00 <u>\$1,593.00</u>
14	At least 12 years but	
15	less than 14 years	\$1,250.00 <u>\$1,875.00</u>
16	At least 14 years but	
17	less than 16 years	\$1,500.00 <u>\$2,250.00</u>
18	At least 16 years but	
19	less than 18 years	\$1,688.00 <u>\$2,532.00</u>
20	At least 18 years but	
21	less than 20 years	\$1,900.00 <u>\$2,850.00</u>
22	At least 20 years	\$2,000.00 <u>\$3,000.00</u>

23 2. For each additional two (2) years of service after the first
24 twenty (20) years an additional ~~Two Hundred Dollars (\$200.00)~~ Three

1 Hundred Dollars (\$300.00) shall be added to the amount stated above
2 for twenty (20) years of service.

3 The total amount of the annual longevity payment made to an
4 employee by any and all state agencies in any year shall not exceed
5 the amount shown on the table corresponding to that employee's years
6 of service with the state, ~~except as otherwise provided by Section~~
7 ~~840-2.28 of this title.~~ Further, no employee shall receive
8 duplicating longevity payments for the same periods of service with
9 any and all agencies, ~~except as otherwise provided by Section 840-~~
10 ~~2.28 of this title.~~

11 E. To determine years of service, cumulative periods of full-
12 time employment or part-time employment working more than one
13 hundred fifty (150) hours per month with the state excluding service
14 as specified in subsection A of this section are applicable. Part-
15 time employment, working one hundred fifty (150) hours per month or
16 less for the state, excluding service as specified in subsection A
17 of this section, shall be counted only if:

18 1. The period of employment was continuous for at least five
19 (5) months; and

20 2. a. The person worked more than two-fifths (2/5) time.

21 Other employment shall not be counted as service for purposes of
22 longevity payments. Further, no period of employment with the
23 state, whether with one or more than one agency, shall be counted as
24 more than full-time service.

1 b. For purposes of the computation required by this
2 section, any service performed by a person during
3 which the person received compensation for duties
4 performed for the state shall be counted if payment
5 for such service was made using state fiscal
6 resources. The provisions of this ~~paragraph~~
7 subparagraph shall not apply to elected or appointed
8 justices or judges, including special judges, who
9 perform services in the trial or appellate courts.
10 The provisions of this section shall apply to persons
11 who perform services as an administrative law judge
12 within the executive department and employees of the
13 judicial branch.

14 F. Years of service under the administrative authority of the
15 Oklahoma State Regents for Higher Education or the administrative
16 authority of the Oklahoma Department of Career and Technology
17 Education of any employee who is now employed in a job
18 classification which is eligible for longevity pay shall be included
19 in years of service for purposes of determining longevity pay.

20 G. Years of service shall be certified through the current
21 employing agency by the appointing authority on a form approved by
22 the Office of Management and Enterprise Services. The form shall be
23 completed and posted as directed by the Director of the Office of
24 Management and Enterprise Services by the current employing agency

1 when the employee initially enters on duty with the agency and
2 thereafter whenever the employee's anniversary date is changed.

3 H. Eligible employees, in full-time status or in part-time
4 status working more than one hundred fifty (150) hours per month,
5 shall receive one (1) lump-sum annual payment, in the amount
6 provided on the preceding schedule, during the month following the
7 anniversary date of the employee's most recent enter-on-duty day
8 with the state. Upon implementation of the statewide information
9 systems project, the lump-sum annual payment may be paid concurrent
10 with the final payroll of the month of the employee's anniversary
11 date. Eligible part-time employees who work one hundred fifty (150)
12 hours per month or less shall receive one (1) lump-sum annual
13 payment, based on the formula in subsection L of this section,
14 during the month following the anniversary date of the employee's
15 most recent enter-on-duty day with the state. To receive longevity
16 pay an employee must be in pay status on or after his or her
17 anniversary date.

18 Eligible employees who would not otherwise receive annual
19 longevity payments because their employment includes regular periods
20 of leave without pay in excess of thirty (30) calendar days shall
21 receive one (1) lump-sum annual payment, based on the formula in
22 subsection L of this section, during:

23 1. The month of August if the employee is in pay status on July
24 1; or

1 2. During the month following the employee's first return to
2 duty that fiscal year if the employee is not in pay status on July
3 1.

4 ~~Except as otherwise provided by Section 840-2.28 of this title,~~
5 ~~employees~~ Employees terminated as a result of a reduction-in-force
6 or retiring from state employment shall receive upon ~~said~~ such
7 termination or retirement the proportionate share of any longevity
8 payment which may have accrued as of the date of termination or
9 retirement. Provided further, that, ~~that~~ the proportionate share of any
10 longevity payment which may have accrued as of the date of death of
11 an employee shall be made to the surviving spouse of the employee or
12 if there is no surviving spouse to the estate of the employee.

13 I. Periods of leave without pay taken in accordance with
14 Section 840-2.21 of this title shall be counted as service. Other
15 periods of nonpaid leave status in excess of thirty (30) calendar
16 days shall not mark a break in service; however, they shall:

17 1. Not be used in calculating total months of service for
18 longevity pay purposes; and

19 2. Extend the anniversary date for longevity pay by the total
20 period of time on nonpaid leave status except as provided in
21 subsection H of this section for employees whose conditions of
22 employment include regular periods of leave without pay.

1 J. Employees currently receiving longevity pay who work for the
2 Oklahoma Department of Career and Technology Education shall not be
3 eligible for the longevity pay plan provided for in this section.

4 K. A break in service with the state in excess of thirty (30)
5 days but which does not exceed two (2) years which was caused by a
6 reduction-in-force shall be treated as if it were a period of
7 nonpaid leave status as provided for in subsection I of this section
8 for the purpose of calculating total months of service for longevity
9 pay. This subsection shall only apply to state employees laid off
10 after June 30, 1982.

11 L. Eligible part-time employees working less than one hundred
12 fifty (150) hours per month and other eligible employees with
13 regular annual periods of leave without pay of more than thirty (30)
14 calendar days will receive a prorated share of the "Annual Longevity
15 Payment" authorized in subsection D of this section. The prorated
16 amount of payment will be based on actual hours worked in the
17 immediately preceding twelve (12) months.

18 M. An employee shall not be entitled to retroactive longevity
19 payments as a result of amendments to this section unless
20 specifically authorized by law.

21 N. The Director of the Office of Management and Enterprise
22 Services is authorized to promulgate such ~~Longevity Pay Plan Rules~~
23 longevity pay plan rules as he or she finds necessary to carry out
24 the provisions of this section.

O. As of July 1, 1998, years of service with a city-county health department for employees who left a city-county health department for employment with the Department of Environmental Quality or the Oklahoma Department of Agriculture, Food, and Forestry, between July 1, 1993, and July 1, 1998, and who are now employed in a job classification that is eligible for longevity pay pursuant to this section, shall be included in years of service for purposes of determining longevity pay subsequent to July 1, 1998.

P. As of July 1, 2003, years of service with a local conservation district shall be included in years of service for purposes of determining longevity pay for local conservation district employees transferred to the Oklahoma Conservation Commission pursuant to the provisions of this section.

SECTION 5. This act shall become effective July 1, 2027.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives

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